

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण / Bid Details                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय / Bid End Date/Time                                                                                                                                                                               | 18-07-2026 09:00:00                                                                                                                                                                                                                                                                                                       |
| बिड खुलने की तारीख/समय / Bid Opening Date/Time                                                                                                                                                                              | 18-07-2026 09:30:00                                                                                                                                                                                                                                                                                                       |
| बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)                                                                                                                                                 | 105 (Days)                                                                                                                                                                                                                                                                                                                |
| मंत्रालय/राज्य का नाम / Ministry/State Name                                                                                                                                                                                 | Bihar                                                                                                                                                                                                                                                                                                                     |
| विभाग का नाम / Department Name                                                                                                                                                                                              | Department Of Panchayati Raj                                                                                                                                                                                                                                                                                              |
| संगठन का नाम / Organisation Name                                                                                                                                                                                            | Begusarai District Panchayats                                                                                                                                                                                                                                                                                             |
| कार्यालय का नाम / Office Name                                                                                                                                                                                               | Gram Panchayat Banwaripur                                                                                                                                                                                                                                                                                                 |
| शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal                                                                                                                                                      | HOD Email id : chk-gpbanwaripur-bih@panchayat.gov.in<br>Buyer Email id: buyer.banwaripur@gmail.com                                                                                                                                                                                                                        |
| कुल मात्रा / Total Quantity                                                                                                                                                                                                 | 2                                                                                                                                                                                                                                                                                                                         |
| वस्तु श्रेणी / Item Category                                                                                                                                                                                                | High Mast Lighting Tower for large area with LED Flood Lighting System (Q3)                                                                                                                                                                                                                                               |
| बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) / Minimum Average Annual Turnover of the bidder (For 3 Years)                                                                                                             | 3 Lakh (s)                                                                                                                                                                                                                                                                                                                |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover                                                                                                      | No                                                                                                                                                                                                                                                                                                                        |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover                                                                                                | No                                                                                                                                                                                                                                                                                                                        |
| विक्रेता से मांगे गए दस्तावेज़ / Document required from seller                                                                                                                                                              | Experience Criteria, Past Performance, Bidder Turnover, Certificate (Requested in ATC), Additional Doc 1 (Requested in ATC)<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेन् है / Do you want to show documents uploaded by bidders to all bidders participated in bid? | No                                                                                                                                                                                                                                                                                                                        |

| बिड विवरण/Bid Details                                                                                                                                                                        |                                                                                                                                                                                                                                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / <b>Minimum number of bids required to disable automatic bid extension</b>                                             | 1                                                                                                                                                                                                                                        |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / <b>Number of days for which Bid would be auto-extended</b>                                                                   | 3                                                                                                                                                                                                                                        |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / <b>Number of Auto Extension count</b>                                                                                                         | 1                                                                                                                                                                                                                                        |
| विगत प्रदर्शन / <b>Past Performance</b>                                                                                                                                                      | 20 %                                                                                                                                                                                                                                     |
| बिड से रिवर्स नीलामी सक्रिय किया/ <b>Bid to RA enabled</b>                                                                                                                                   | No                                                                                                                                                                                                                                       |
| बिड का प्रकार/ <b>Type of Bid</b>                                                                                                                                                            | Two Packet Bid                                                                                                                                                                                                                           |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / <b>Time allowed for Technical Clarifications during technical evaluation</b>                                                    | 2 Days                                                                                                                                                                                                                                   |
| निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ <b>Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)</b> | No                                                                                                                                                                                                                                       |
| <b>Payment Timelines</b>                                                                                                                                                                     | Payments shall be made to the Seller within <b>45</b> days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC) |
| <b>मूल्यांकन पद्धति/Evaluation Method</b>                                                                                                                                                    | Total value wise evaluation                                                                                                                                                                                                              |
| <b>मध्यस्थता खंड/Arbitration Clause</b>                                                                                                                                                      | No                                                                                                                                                                                                                                       |
| <b>सुलह खंड/Mediation Clause</b>                                                                                                                                                             | No                                                                                                                                                                                                                                       |

#### ईएमडी विवरण/EMD Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

#### ईपीबीजी विवरण /ePBG Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

#### एमएसई खरीद वरीयता/MSE Purchase Preference

|                                           |    |
|-------------------------------------------|----|
| एमएसई खरीद वरीयता/MSE Purchase Preference | No |
|-------------------------------------------|----|

**एमआईआई खरीद वरीयता/MII Purchase Preference**

|                                            |    |
|--------------------------------------------|----|
| एमआईआई खरीद वरीयता/MII Purchase Preference | No |
|--------------------------------------------|----|

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

3. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 20% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

**High Mast Lighting Tower For Large Area With LED Flood Lighting System ( 2 pieces )****तकनीकी विशिष्टियाँ /Technical Specifications**

\* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

| विवरण/Specification | विशिष्टि का नाम /Specification Name                                                                                                                                                            | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|---------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| GENERIC             | <b>Height of High Mast Tower (in Meters)</b>                                                                                                                                                   | 16                                                              |
|                     | <b>Installation and commissioning (Installation and commissioning work at multiple locations shall follow as per the guidelines of State/Central Govt rules and regulations as applicable)</b> | Yes. Including Civil work at site                               |
|                     | <b>Onsite warranty (in Years)</b>                                                                                                                                                              | 3                                                               |
| High mast System    | <b>No of sections</b>                                                                                                                                                                          | 2                                                               |
|                     | <b>Effective length of each section (in m)</b>                                                                                                                                                 | 8.5                                                             |
|                     | <b>Material construction: The mast shall be manufactured using special steel plates, conforming to</b>                                                                                         | 355 grade as per BSEN10 025                                     |
|                     | <b>Bottom diameter (in mm) - Minimum</b>                                                                                                                                                       | 540                                                             |

| विवरण/Specification                            | विशिष्टि का नाम /Specification Name                                                                                                                                                              | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
|                                                | Plate thickness for Middle (in mm) - Minimum                                                                                                                                                     | 4                                                               |
|                                                | Plate thickness for Bottom (in mm) - Minimum                                                                                                                                                     | 5                                                               |
|                                                | No of longitudinal welds / section (in Nos)                                                                                                                                                      | 1                                                               |
|                                                | Diameter of base plate (in mm) - Minimum                                                                                                                                                         | 740                                                             |
|                                                | Thickness of base plate (in mm) - Minimum                                                                                                                                                        | 25                                                              |
| Wind Load                                      | Maximum Wind load                                                                                                                                                                                | 50 m/sec                                                        |
| Door Opening                                   | Size of opening and closing door at base compartment of high mast (in mm) - Minimum                                                                                                              | 1200 x 250                                                      |
| Junction Box                                   | Ingress protection for Junction Box i.e. IP Class (as per IS/IEC:60529:2001 latest) Test Report from Central Government lab/NABL/ILAC accredited lab and report shall furnish to buyer on demand | IP 65                                                           |
|                                                | No of core                                                                                                                                                                                       | 3                                                               |
|                                                | Cable category                                                                                                                                                                                   | FR                                                              |
|                                                | Size of cable (in Sq mm)                                                                                                                                                                         | 4                                                               |
|                                                | Conductor material shall be                                                                                                                                                                      | Copper                                                          |
| Winch                                          | The winch shall have provision for manual operation in case of failure of the motor                                                                                                              | Yes                                                             |
| Stainless Steel Wire Rope                      | The breaking load of each rope shall be at full load as per the relevant standard                                                                                                                | >/=2250Kg                                                       |
| Electrical System, Cable and Cable Connections | No. of cores                                                                                                                                                                                     | 4                                                               |
|                                                | Cable shall be                                                                                                                                                                                   | Armoured                                                        |
|                                                | Conductor material shall be                                                                                                                                                                      | Copper                                                          |
|                                                | Cable Category                                                                                                                                                                                   | C1                                                              |
|                                                | Incoming power cable from feeder panel to base compartment of mast and cable shall conforming to                                                                                                 | IS:7098 (Part 1):1988 latest                                    |
| Feeder pillar Panel                            | Feeder pillar panel for each mast                                                                                                                                                                | Yes                                                             |

| विवरण/Specification | विशिष्टि का नाम /Specification Name                                                                                                                                                                | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
|                     | <b>Feeder panel shall be suitable for</b>                                                                                                                                                          | 415 V, 3 phase, 4 wire, 50 Hz, AC                               |
|                     | <b>The control panels shall be</b>                                                                                                                                                                 | Stand mounted                                                   |
|                     | <b>Ingress protection for feeder pillar panel i.e IP Class (as per IS/IEC:60529:2001 latest).Test Report shall furnish from Central Government lab/NABL/ILAC accredited lab to buyer on demand</b> | IP 65                                                           |
|                     | <b>It shall be fabricated out of</b>                                                                                                                                                               | 14 SWG CRCA sheet steel                                         |
|                     | <b>Thickness of sheet (in mm)</b>                                                                                                                                                                  | 2                                                               |
|                     | <b>The panels shall be given pre-treatment and powder coated and color shall be</b>                                                                                                                | Grey                                                            |
|                     | <b>The stand shall be painted in</b>                                                                                                                                                               | Black color                                                     |
|                     | <b>Cable entry shall be at the</b>                                                                                                                                                                 | Bottom                                                          |
|                     | <b>The panels shall have</b>                                                                                                                                                                       | knock outs of the required cable                                |
|                     | <b>Laminated circuit diagram shall be pasted</b>                                                                                                                                                   | inside of the door                                              |
|                     | <b>Feeder pillar shall have pad locking arrangement</b>                                                                                                                                            | Yes                                                             |
|                     | <b>Earth terminal</b>                                                                                                                                                                              | 12 mm dia. Bolts                                                |
|                     | <b>Panel shall have a sloping cover to avoid accumulation of dust</b>                                                                                                                              | Yes                                                             |
|                     | <b>Panel shall be provided with incoming &amp; outgoing MCCB / MCB of appropriate rating and in desired quantity depending on total no of circuits in use</b>                                      | yes                                                             |
|                     | <b>Timer for automatic ON &amp; OFF of lights with pilot lamps shall be provided</b>                                                                                                               | Yes                                                             |
|                     | <b>Bus bars material</b>                                                                                                                                                                           | Yes. Copper                                                     |
|                     | <b>No of Cores</b>                                                                                                                                                                                 | 4                                                               |
|                     | <b>Size of cable (in Sq.mm)</b>                                                                                                                                                                    | 4                                                               |
|                     | <b>Cable Shall be</b>                                                                                                                                                                              | Armoured                                                        |
|                     | <b>The conductor material shall be</b>                                                                                                                                                             | Copper                                                          |

| विवरण/Specification       | विशिष्टि का नाम /Specification Name                                                    | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|---------------------------|----------------------------------------------------------------------------------------|-----------------------------------------------------------------|
|                           | cable category                                                                         | C1                                                              |
| LED FLOOD LIGHT LUMINAIRE | No. of Luminaires for each high mast lighting tower (in Nos)                           | 8                                                               |
|                           | LED Rating/System Wattage/Rated Power for each luminaire                               | 200W                                                            |
|                           | Luminaire System Efficacy (Lumen/watt)                                                 | >= 100 Lm/Watt                                                  |
|                           | Ingress Protection (IP Rating) as per IS:10322 (Part 1):1982 latest                    | IP65                                                            |
|                           | Mounting brackets (included)                                                           | Adjustable                                                      |
|                           | Input operating Voltage range and frequency                                            | 90 to 300 Volts AC at 50Hz+/-2Hz                                |
|                           | Rated voltage                                                                          | 230 V AC 50 Hz                                                  |
|                           | Colour temperature                                                                     | 6000K (+/- 500K)                                                |
|                           | Optic lense material (UV stabilised) (Write NA for without optic lense supply)         | Poly carbonate lense                                            |
|                           | Operating temperature range                                                            | -20 deg C to +50 deg C                                          |
|                           | The luminaire shall be protected against surges and transients( Internal)              | >=5KV                                                           |
|                           | Number of electronic control gear per luminaire (power supplies)                       | 1 No.                                                           |
|                           | Length of ISI marked three core wire (shall be provided along with supply of material) | 50 cm                                                           |

**परिषदी/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | परिषदी/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                      | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|--------------------------------------------------------|----------------------------------|------------------|------------------------------|
| 1             | Upendra Kumar                                          | 851133,gram panchayat banwaripur | 2                | 15                           |

## क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

### 1. **Generic**

**OPTION CLAUSE:** The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be  $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$ , subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

### 2. **Generic**

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

As per buyer provided  
As per buyer provided  
As per buyer provided  
As per buyer provided  
As per buyer provided  
.

### 3. **Generic**

**Bidder financial standing:** The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

### 4. **Inspection**

**Pre-dispatch inspection at Seller premises (Fee/Charges to be borne by the BUYER):** Before dispatch, the goods will be inspected by Buyer / Consignee or their Authorized Representative or by Nominated External Inspection Agency (independently or jointly with Buyer or Consignee as decided by the Buyer) at Seller premises (or at designated place for inspection as declared / communicated by the seller) for their compliance to the contract specifications. Fee/Charges taken by the External inspection Agency and any external laboratories testing charges shall be borne by the Buyer. For in-house testing, the Sellers will provide necessary facilities free of cost. Seller shall notify the Buyer through e-mail about readiness of goods for pre-dispatch inspection and Buyer will notify the Seller about the Authorized Representative/ Nominated External Inspection Agency and the date for testing. The goods would be dispatched to consignee only after clearance in pre-dispatch inspection. Consignee's right of rejection as per GTC in respect of the goods finally received at his location shall in no way be limited or waived by reason of the goods having previously been inspected, tested and passed by Buyer/ Consignee or its Nominated External Inspection Agency prior to the goods' shipment. While bidding, the sellers should take into account 7 days for inspection from the date of email offering the goods for inspection. Any delay in inspection beyond 7 days shall be on the part of the buyer and shall be regularised without Liquidated Damages.

When there is requirement of submission the advance sample, the seller shall inform the buyer promptly through emails about the date of submission of sample to the buyer nominated Inspection agency.

### 5. **Certificates**

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

### 6. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

## Pole hight 7 mtr Light 4 Pic

1. Bidders must submit self attested copies of PAN card, Adhar , GST certificate , Udyam Certificate, alongwith cancelled bank cheque.
2. Bidders should submit the declaration that the cost of the materials is not more than the market rates or Gem portal sites. (Material cost + Handling + Transportation + Labour + GST + etc.)
3. The Bidder shall not have been blacklisted by any Department /Ministry of the Govt of India/ State Govt. / PSUs. (Declaration on government stamp paper).
4. Bidders /OEM must have ISO-9001,ISO-45001,/,ISO 3834-1:2021, GMP certified, CE Certifications. Copies of the same must be submitted in bid participation documents .
5. Wherever Authorized Distributors are submitting the bid, Manufacturers Authorization Form (MAF)/Certificate with OEM details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid.
6. Bank Mandate Signed By bank authorities for e-payment.
7. Manufacturer ITR audit report/balancesheet for assessment year – 2020-2021/2021-2022/2022-23
8. Service and Warranty Declaration by the Enterprise /OEM on notary stamp paper (min 100rs)
9. Bidder must have functional service center in Consignee state .Valid evidence in support of it must be submitted .
10. Delivery has to be done at the consignee location within specified time .No additional freight charges will be paid for it . Self declaration of the same has to be submitted on letterhead duly signed and stamped
11. Bidder should have the work order issued by client for the same nature work with a minimum of Rs15.00 Lacs (In Single Order) or Rs 12.00 Lacs (Two Order) or Rs 8.00 lacs [three orders) in-between the Past three years from any Bihar State or Central Government offices or PSUs. (No Private Parties order)

## अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.



9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms

of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---